

August 13, 2008



U.S. Department  
of Transportation

East Building, PHH-30  
1200 New Jersey Avenue S.E.  
Washington, D.C. 20590

**Pipeline and Hazardous  
Materials Safety Administration**

DOT-SP 14749

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| EXPIRATION DATE: January 31, 2009 |
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1. GRANTEE: U.S. Environmental Protection Agency (EPA) and contractors conducting operations under the direction of EPA government officials.  
Chicago, IL
2. PURPOSE AND LIMITATION:
  - a. This emergency special permit authorizes the transportation in commerce of hazardous materials used to support the recovery and relief efforts from and within the EPA Region 5 FEMA flood disaster areas under conditions that may not meet the requirements of the Hazardous Materials Regulations. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
  - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR, Parts 171 through 180, except as specified herein.

5. This emergency special permit is based on the application of U.S. Environmental Protection Agency, Region 5, dated July 25, 2008, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Hazardous Materials Description                                           |                              |                       |               |
|---------------------------------------------------------------------------|------------------------------|-----------------------|---------------|
| Proper shipping name                                                      | Hazard Class/ Division       | Identification Number | Packing Group |
| Hazardous Materials listed in the 49 CFR other than radioactive materials | Class 1, 2, 3, 4, 5, 6, 8, 9 | As Applicable         | As Applicable |

7. SAFETY CONTROL MEASURES:

- a. Compliance with the HMR is required to the extent practicable. When compliance with the HMR is not possible or practicable, shipments may be offered or transported under alternative safety requirements imposed by the grantee.
- b. Transportation authorized under this special permit is limited to a radius of 300 air miles from any collection facility.
- c. Specifically, grantees will segregate and transport hazardous materials utilizing appropriate safety practices to designated collection facilities. Relief from the HMR shipping paper and hazard communication requirements will apply only for strike teams which will be performing recon, field screening and emergency packing/segregation in the field, up to the point of delivery to designated collection facilities.
- d. Vehicles loaded by field teams will use the Dangerous placard and/or load specific hazard class placards and will be escorted to collection facilities by grantee representatives.

- e. All applicable HMR provisions (including UN specification packaging, lab-pack requirements, hazard communication and shipping paper requirements) will apply at designated collection centers for subsequent transportation.
8. SPECIAL PROVISIONS: Operations under this special permit are limited to the grantee.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
  - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
  - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term

**August 13, 2008**

"exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke

Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at [http://hazmat.dot.gov/sp\\_app/special\\_permits/spec\\_perm\\_index.htm](http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm) Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: LAVALLE